Beta Nu Chapter of Theta Chi Fraternity

Local Bylaws

February 8, 2023

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Preamble

We, the Brothers of Beta Nu Chapter of Theta Chi Fraternity, in order to forge a more perfect Brotherhood, to advance our Alma Mater, to protect and promote our stated values of Truth, Temperance, and Tolerance, and to practice the ideal of the Helping Hand, do ordain and establish these Bylaws for the operations of our Chapter.

Article I

Bylaw Structure

A Bylaws as Pertaining to the International Fraternity

1. The Bylaws of Beta Nu Chapter of Theta Chi Fraternity are adopted as provided for in the International Bylaws (IBL) of Theta Chi Fraternity (Article V, Section 1).
2. The bylaws of this chapter will be superseded by the IBL of Theta Chi Fraternity.

B Amendments

1. All proposed amendments to these Bylaws will specify in the motion that they are amendments.
2. A proposed Amendment may not be voted on unless it has been brought up at least one chapter meeting before or has been available for inspection for at least six days.
3. A proposed amendment must receive a supermajority vote for ratification.

C Suspension

1. Portions of the bylaws may be suspended by supermajority vote of the chapter.
2. Motions to suspend a portion of the bylaws must contain:
   (a) To whom the suspension applies.
   (b) The time period during which the suspension applies.
   (c) The portion to be suspended.
3. The Executive Council (EC) may issue an Executive Edict by absolute majority vote in the case of an emergency.
   (a) The Executive Edict will be proposed to the chapter at the next chapter meeting with quorum by the Vice President.
   (b) The Executive Edict must be approved by the chapter by a supermajority vote in order for the Executive Edict to remain in effect after the chapter in which it was voted upon.

D Interpretation

1. EC will have the power to interpret these Bylaws by an absolute majority vote.
2. Any brother may bring EC Bylaw Interpretation grievances, in writing, to EC.

(a) All grievances brought to EC will at all times be confidential.

(b) The results of the grievance will be announced to the chapter at the next chapter meeting.

i. EC interpretation is subject to overrule by a supermajority vote of the active chapter.

A. Voting to overrule an EC interpretation of these Bylaws will be done by ballot.

E Glossary

1. All highlighted terms are defined in the Glossary section.
2. The Glossary is a binding section of the bylaws.
3. Amendments to the Glossary will follow the procedure in Article I, Section B.

F Appendices

1. This document will have the following appendices:

   (a) EC Interpretations

   i. Will contain a record of EC interpretations of the local bylaws.

   ii. Interpretations that refer to deprecated parts of the local bylaws may be removed at the discretion of the Vice President.

   iii. Items may be added to this appendix by the Vice President.

   (b) Trial Precedents

   i. Will contain the choice of trial and results of all Trial Hearings for the purpose of establishing precedent.

   ii. All parties will remain anonymous.

   iii. Items will be added to this appendix by the Arbiter or Parliamentarian of Standards Board and will include the date that the decision was made.

   iv. Items that are over five years old may be removed at the discretion of the Arbiter or Parliamentarian of Standards Board.

   (c) Permanent Legislation

   i. Will contain all permanent legislation passed by the chapter.

   ii. Upon being passed, permanent legislation will be added to this appendix by the Vice President.

   iii. Permanent legislation that is revoked or amended will be removed or changed in this appendix by the Vice President.

2. Appendices may be amended or removed by the chapter in the same manner as amending the bylaws.

   (a) Any amendment that is not approved by the chapter by simple majority will be removed from its appendix.

Article II

Legislation

A Precedence

1. The legislation of this chapter will be superseded by the Theta Chi International Bylaws (IBL), Theta Chi International Legislation, legislation passed by the Grand Chapter of Theta Chi Fraternity, and the Beta Nu of Theta Chi Local Bylaws.

B Categories and Duration

1. Temporary legislation
   (a) Must be passed by a simple majority vote.
   (b) Expires one year from the date of passage unless a date of expiration is speciified.
2. Permanent legislation
   (a) Must be passed by a simple majority vote.
   (b) Will remain in effect indefinitely, until revoked or amended as specified below.
3. Emergency legislation:
   (a) Can be passed by a simple majority of those present (even if quorum is not present).
   (b) At the next chapter meeting where quorum is present, the Vice President will bring the emergency legislation before the chapter as permanent or temporary legislation.
4. Executive Edicts
   (a) Must be approved by an absolute majority vote of Executive Council (EC), which immediately puts the edict into effect as legislation.
   (b) Supersede all previous legislation.
   (c) At the next chapter meeting at which quorum is present, the Vice President will bring the edict before the chapter as permanent or temporary legislation. The chapter must then approve the legislation for the edict to remain in effect.
5. If the legislation is not proposed as one of the above types, it will be treated as temporary legislation.

C Revoking or Amending

1. The legislation of this chapter may be revoked or amended by a simple majority vote.
2. No legislation can be revoked or amended if quorum is not present with the exception of emergency legislation.

Article III

Chapter Meetings

A Time

1. The active chapter will meet once per week while school is in session, as required by International Bylaws (IBL) Article V Section 7 Part A.
2. The default time for a chapter meeting will be Sunday at 6:30 PM unless legislated otherwise.

B Excuses

1. Excuses for chapter meetings must be submitted in writing to the Secretary according to the time specified by the Excuse Plan.
2. Excuses must be approved by a simple majority vote of Executive Council (EC).
3. Failure to attend a chapter meeting without an approved excuse (in accordance with Article III, Section B, Item 1) will count as an unexcused absence.

C Absences

1. A brother who has three unexcused absences in a row must be brought up for standards by the Secretary with the possibility of suspension.
2. A brother who has three unexcused absences throughout the semester will be staggard.
3. A brother who has four unexcused absences throughout the semester will be placed on probation until the end of the semester.
4. A brother who has seven unexcused absences throughout the semester will be brought up for standards by the Secretary with the possibility of suspension.

D Rules and Regulations

1. All officer reports and communications must be submitted in writing to the Secretary prior to a chapter meeting at a time decided by the Secretary. Emergency reports or communications may be given at the discretion of the presiding officer.
2. No one will leave any chapter meeting unless excused by the presiding officer.
3. Any member whose conduct is unbecoming of a brother may be asked to leave the meeting by the presiding officer.

4. The First Guard will determine and enforce proper dress code at chapter meetings.
5. At the discretion of the First Guard, entrance to chapter meetings will be conducted according to Ritual.
6. No guests will be permitted on the first floor or basement of the house during a chapter meeting or the preparation thereof unless permitted by the chair.
7. There will be no food or drink, with the exception of water in a resealable container, at any chapter meeting.

Article IV

Voting

A Voting Overview

1. All brothers eligible to vote must vote.
2. Only active brothers who are not on probation or financial probation are eligible to vote.
3. Brothers must be present for all of the discussion on a motion in order to be eligible to vote on that motion.
4. A brother not required to pay local dues is ineligible to vote.
5. Unless specified in Article IV section B, the method of voting will be by a show of hands.

B Procedure

1. The following votes will be performed by ballot:
   (a) New Members for Initiation
   (b) Officer Elections
   (c) To overturn an Executive Council (EC) Interpretation of the bylaws (Article I, Section D)
   (d) At a suspension trial
   (e) To retain a candidate who was not initiated the previous semester
2. Balloting
   (a) The Second Guard and the Chaplain will collect and count the ballots.
   (b) The chaplain will confirm the count and repeat the results to the presiding officer.
   (c) No brother may count the ballots for a matter related to himself.
   (d) In the case of absense, conflict of interest, or at the discretion of the chair, the chair may appoint a brother to collect and count the ballots.
3. New Members for Initiation
   (a) Balloting on New Members for Initiation will be in accordance with the International Bylaws (IBL) of Theta Chi Fraternity, Article VI, Section 4, paragraph d.
   (b) New Members must be approved by a $\frac{3}{4}$ vote of the active chapter to be initiated.
      i. This may be reduced for the duration of a single chapter meeting to an absolute majority vote by a simple majority vote.

4. Officer Elections
   (a) Officers will be elected by simple majority vote.
   (b) In the case that no nominee receives a simple majority, there will immediately be another vote between all candidates who received the two highest counts of votes.
   (c) Nominations for president and treasurer must be a week before nominations for the other positions in order to make time for CAB interviews.

Article V

Officer Selection and Duties

A Terms of Office

1. All elected offices will have yearly terms except Standards Board Justice.
   (a) Each Standards Board Justice will be elected to serve until resignation, ineligibility, removal from office, or graduation (Article XII, Section B, Item 6).
2. The President will appoint all appointed officers subject to a simple majority vote of the chapter.
3. Appointed positions will have semesterly terms except for OX Roast Chair, and Community Standards Chair.
4. The Recruitment Chair and Public Relations Chair will serve from the end of the first Rush period after election or appointment through the first Rush period after the election or appointment of a new officer.

B Nominations

1. Nominations will be opened at least one week before elections.
2. All members, in order to be eligible for nomination, must be in good standing with the University and the International Fraternity and must not be on financial probation.

C Elections

1. Officers will be elected in accordance with the International Bylaws (IBL) Article V, Section 3.
2. Nominations must be closed in order to elect an officer.
3. For each elected position, excluding Standards Board Justices, the election will proceed as such:
   (a) For each candidate:
      i. Candidates will be allowed speeches following these rules:
         A. Other candidates will leave the room.
         B. Candidates will be allowed not less than three minutes to speak.
      ii. The chapter will be allowed to ask the candidate questions following these rules:
         A. The chapter will be allowed not less than two minutes to question.
         B. Any time not used by a candidate for his speech will be allowed for questions.
   (b) The chapter will discuss the candidates subject to the following rules:

i. All candidates will leave the room.
ii. The chapter will be allowed not less than five minutes to discuss.
iii. If the candidate is elected by white ballot, this section does not apply.

(c) Candidates will be allowed to vote in the election in direct exception to the above Article IV, Section A, Item 3.

4. Standards Board elections will proceed as such:

(a) There will be one election for all open Standards Board positions.
(b) The election will be held by Ranked Choice Voting System voting system.
(c) Each ballot must include a chosen nominee for each opening.
(d) Any nominee receiving a simple majority or plurality of votes is elected to an open position.
i. The First Guard will be responsible for the creation of a Standards Board Plan.
(e) If all open positions are not filled, repeat this process.
(f) In the case of electing multiple Standards Board justices, the nominees will be allowed to hear the speeches of the other candidates in exception of Article V, Section 3, Item (a), point i, subpoint A.

5. If an elected position should become vacant:

(a) The President will appoint an interim officer, preferably a brother who has held the office before.
(b) Nominations for the open position will take place at the next regularly scheduled chapter meeting.
(c) The week following the opening of nominations, elections will proceed as defined above in Article V, Section C.

D Elected Officers and Their Duties

1. President

(a) Performs all duties stated in the IBL Article V, Section 6, paragraph a.
(b) Serves as a liaison between the chapter and the community.
(c) Attends all Interfraternity Congress (IFC) and Greek Life Office functions expected of the President.
(d) Attends all Chapter Advisory Board (CAB) meetings.
(e) Responsible for the overall completion of Community Standards.
(f) A candidate for the position of President must be interviewed by the CAB prior to the election. A simple majority vote of the CAB may veto that candidate. This veto can be overruled by a supermajority vote of the chapter. Failure for CAB to meet with a candidate prior to elections will be interpreted as CAB waiving their right to interview the candidate.
(g) Serves as a member of Executive Council (EC).
(h) Must live in the house.

2. Vice President

(a) Performs all duties stated in the IBL Article V, Section 6, paragraph b.
(b) Serves as Parliamentarian for the chapter, Standards Board, and is responsible for all committees.
(c) Maintains the chapter's local bylaws.
(d) Ensures legislation records are up to date.
(e) Adds all permanent legislation to the appropriate appendix as outlined in Article I, Section F.

(f) Adds EC Interpretations to the Appendices.
(g) Appoints active members to committees at the beginning of each semester.
(h) Assigns living space as outlined in Article VII, Section C.
(i) Serves as chair of the Bylaw Revision Committee as outlined in Article IX, Section C.
(j) Responsible for the Leadership portion of Community Standards.
(k) Serves as chair of EC and represents it to the chapter.
(l) Serves as chair of the Committee Chair Committee (CCC).
(m) May make Ad Hoc Committees at their discretion as defined in Article V, Section G, Item 3a.
(n) Must live in the house.

3. Vice President of Health and Safety
   (a) Performs all duties stated in the IBL Article V, Section 6, paragraph c.
   (b) Plans and oversees a yearly community outreach event regarding health and safety.
   (c) Serves as a liaison between the chapter and community health services.
   (d) Organizes events on 7 topics, 2 of which are available to the greater public, on Health and Safety for the chapter per academic year.
   (e) Maintains house medical kit.
   (f) Responsible for the Citizenship portion of Community Standards.
   (g) Serves as a member of EC.
   (h) Serves as chair of the Health and Safety Committee.
   (i) Must live in the house.
4. Secretary
   (a) Performs all duties stated in the IBL Article V, Section 6, paragraph d.
   (b) Records attendance and enforces the standards for attendance in Article III, Section C.
   (c) Serves as Secretary of EC
   (d) Collects all legislation, Bylaw amendments, and Officer Reports according to Article II, **??** and Article I, Section B, **??**.
   (e) Sets the agenda for chapter meetings according to the IBL Article V, Section 8, paragraph d.
   (f) Maintains the mailbox and mail closet.
   (g) Will create a contact list for the chapter which includes contact information of brothers, advisors, Greek Life, and emergency services.
   (h) Handles registration of Pledges, requests for initiation, and the recording of new initiates.
   (i) Serves on CCC.
   (j) Must live in the house.
5. Treasurer
   (a) Performs all duties stated in the IBL Article V, Section 6, paragraph e.
   (b) Is accountable to the Alumni Corporation.
   (c) Collects all fees, dues, and fines.
   (d) Records all transactions made by the chapter.
   (e) Will provide a written report at the request of any brother. The report will include all payments paid out, all monies received, current bank account balances, and budget updates.

(f) Keeps private all individual account balances except from the brother whose account it is and EC.

(g) Issues enumerated bills for all brothers and New Members at least three times a semester unless otherwise decided by the chapter.

(h) Announces the names of all members on financial probation at each chapter meeting during the Treasurer's Report or before any vote, whichever occurs first.

(i) Will create a budget following the process outlined in Article VI, Section B.

(j) Ensures compliance with the General Rules for chapter finances outlined in Article VI, Section A.

(k) Will propose a housing contract to the chapter by the last chapter meeting of each semester with a final version to be approved at the first chapter meeting of the next semester.

(l) Will ensure that all brothers living in the house have signed a housing contract by the second chapter meeting of each semester.

(m) Maintains an emergency fund of no less than $3000 and can withdraw money from the fund only with the authorization of two of the three highest officers.

(n) Will meet with the Alumni Financial Advisor at least twice each semester.

(o) Will file taxes at least two weeks before the filing deadline each year.

(p) Will ensure that taxes will be reviewed by the CAB financial advisor, alumni housing corporation financial advisor, and EC no later than one month before the filing deadline.

(q) Will send taxes by certified mail, and will distribute this certification to the CAB financial advisor, alumni housing corporation financial advisor, and EC.

(r) Will retain a physical and electronic backup of financial records for no fewer than five years.

(s) Maintain a changelog of the budget.

(t) Give a monthly financial report to the chapter and deliver the report to CAB.

(u) The Treasurer cannot be elected or appointed to a position which has permission to spend from the budget.

(v) Cannot be elected to another position during their term.

(w) A candidate for the position of Treasurer must be interviewed by the CAB prior to the election. A simple majority vote of the CAB may veto that candidate. This veto can be overruled by a supermajority vote of the chapter. Failure for CAB to meet with a candidate prior to elections will be interpreted as CAB waiving their right to interview the candidate.

(x) Serves as a member of EC.

(y) Must live in the house.

6. Marshal

   (a) Performs all duties stated in the IBL Article V, Section 6, paragraph f.

   (b) Will submit a plan as legislation for their office by the first chapter meeting of the semester of their term.

   (c) Will reserve a location for initiation.

   (d) Will organize a bid acceptance dinner and the bid acceptance ceremony.

   (e) Responsible for the Ritual portion of Community Standards.

   (f) Serves as a member of EC.

   (g) Must live in the house.

7. Recruitment Chair

   (a) Performs all duties stated in the IBL Article V, Section 6, paragraph l

(b) Assumes responsibility for directing the recruitment process.
(c) Chairs the Recruitment Committee.
(d) Will run a recruitment workshop each semester.
(e) Will present a Rush calendar to the chapter by Initiation.
(f) Will be responsible for any Rush period that they have planned, including those after their term.
(g) Confirms and tracks the attendance of each brother at Rush events (Article XI, Section B, Item 2).
(h) Serves as a member of EC.
(i) Must live in the house.

8. Scholarship Chair

(a) Performs all duties stated in the IBL Article V, Section 6, paragraph i.
(b) Performs all duties specified by the Greek Life Office, IFC, and the University.
(c) Will prepare a written scholarship program, submit it to the Office of Greek Life, and pass it as legislation in chapter by the 2nd chapter of their term, containing the following:
    i. A plan for the creation of Scholarship contracts for all brothers.
    ii. A plan for ensuring the chapter house is an environment conducive to studying.
    iii. A plan for providing incentives for academic achievements.
(d) Will present the scholarship program to new members.
(e) Works with the Marshal to promote academic well-being among New Members.
(f) Organizes a formal scholarship dinner to recognize achievement about scholarship within the chapter.
(g) Will arrange at least one program per semester with a speaker who will talk to the chapter about scholarship or an issue relating to scholarship.
(h) Will ensure all brothers are a part of at least one non-greek club or activity.
(i) Attends monthly meetings with the Greek Community Educational Consultants in accordance with Case Western Reserve University (CWRU) Greek Communtiy Standards.
(j) Ensures that member scholarship standards are enforced (Article X, Section A).
(k) Responsible for the Scholarship portion of Community Standards.
(l) Serves as chair for the Scholarship Committee.
(m) Serves on EC.
(n) Must live in the house.

9. Chaplain

(a) Performs all duties stated in the IBL Article V, Section 6, paragraph g.
(b) Handles conflict resolution in the chapter.
(c) Organizes and mediates round table discussions on contentious issues between brothers.
(d) Must live in the house.

10. Historian

(a) Performs all duties stated in the IBL Article V, Section 6, paragraph h.
(b) Assists alumni relations chair with the alumni database.
(c) Ensures that pictures are taken at chapter events.
(d) Will make a yearly scrapbook for the semester that they serve with the assistance of the previous historian.

(e) Manages the chapter's online photo and video galleries jointly with the PR Chair.
(f) Works with the house manager to ensure that the composites are displayed correctly.
(g) Maintains and updates the photos around the house.
(h) Maintains the chapter museum.

11. First Guard
    (a) Performs all duties stated in the IBL Article V, Section 6, paragraph j.
    (b) Assists Marshal in planning and executing initiation and prepares the chapter for it.
    (c) Serves as Arbiter of Standards Board.
    (d) Prepares the chapter room for meetings.
    (e) Will enforce reasonable dress in the chapter room as stated in Article III, Section D, Item 4.
12. Second Guard
    (a) Performs all duties stated in the IBL Article V, Section 6, paragraph k.
    (b) Serves as Scribe of Standards Board.
    (c) Assists the first guard in preparing the chapter room for meetings.
13. Standards Board Justice
    (a) Hears and rules on all cases brought before Standards Board as defined in Article XII.
    (b) Attends all meetings of Standards Board.
    (c) Keeps confidential all matters related to judicial proceedings.
    (d) Treats all brothers and New Members fairly, impartially, and consistently.

E Appointed Positions

1. Executive Council Member at Large
    (a) Must have previously served on EC for a full term.
    (b) Must not hold another EC position.
    (c) Assists and advises EC.
2. Public Relations Chair
    (a) Serves as chair of the Public Relations Committee (Article V, Section G, Item 2b).
    (b) Works with the Public Relations Committee to create PR for the public events of the chapter at the request of other chairs.
    (c) Maintains the chapter social media pages and accounts.
    (d) Serves as a member of CCC.
3. Social Chair
    (a) Organizes social events.
    (b) Ensures that all social events run in accordance with all University, Greek Life, IFC, North American Interfraternity Conference (NIC), and IHQ regulations and policies.
    (c) Serves as chair of the Social Committee (Article V, Section G, Item 2a).
    (d) Will attend all IFC Social Chair meetings.
    (e) Serves as a member of CCC.

4. Alumni Relations Chair
   (a) Collects materials for and edits the Alumni Newsletter with the help of the Alumni Corporation and sends out the ALumni newsletter before the lasta day of classes.
   (b) Maintains the alumni database.
   (c) Serves as chair of the Alumni Relations Committee (Article V, Section G, Item 2b).
   (d) Organizes the Alumni Ceremony at the end of the semester in which they serve.
   (e) Serves as a member of CCC.
5. Membership Development Chair
   (a) Serves as chair of the Membership Development Committee.
   (b) Will plan and carry out at least one event or program in each of the following categories:
      i. Mental well-being
      ii. Physical well-being
      iii. Professional development
      iv. Recreation
   (c) Serves as a member of CCC.
6. Service Manager
   (a) Serves as chair of the Philanthropy committee.
   (b) Ensures that the chapter meets Greek Life goals for philanthropy.
   (c) Informs the chapter of philanthropy.
   (d) Serves as a member of CCC.
7. Service Chair
   (a) Ensures that the chapter meets Greek Life goals for service.
   (b) Informs the chapter of service opportunities.
   (c) Sets individual service requirements for each brother for each semester.
   (d) Brings brothers up for standards for not meeting service requirements.
   (e) Serves as a member of CCC.
8. House Manager
   (a) Will live in the house.
   (b) Assumes responsibility for the maintenance of the fraternity residence and surrounding property.
   (c) Oversees and assumes responsibility for all property of the fraternity including repair and replacement of equipment.
   (d) Creates, implements, and monitors a parking lot program to be approved by the treasurer.
   (e) Serves as a member of CCC.
9. Detail Manager
   (a) Will pass a house and kitchen detail plan as legislation by the first chapter meeting of the semester in which they serve. The plan must contain provisions for the assessment of fines for delinquency in details.
   (b) Assigns weekly house details and weekly kitchen details.
   (c) Will be responsible for the direction of all special event details, which may be called at their discretion.

10. Food Steward
    (a) Works with a chef or catering service to maintain a brotherhood meal plan.
    (b) Ensures the service chosen for the meal plan is paid for according the agreement with the chef or catering service.
    (c) Must be on the meal plan.
    (d) Works with the Detail Manager to keep public areas in the kitchen clean and ensure proper storage of food.
    (e) Assigns cabinet and fridge space to in-house brothers.
    (f) Must live in the house.
11. Risk Manager
    (a) Performs all duties specified in the IFC Bylaws, Article IX (IFC Bylaws Webpage).
    (b) Schedules Students Meeting About Risk and Responsibility Training (SMARRT) or similar presentations at the request of the Greek Like Office.
    (c) Ensures compliance with all Greek Life, University, International Headquarters (IHQ), and NIC guidelines and policies.
    (d) Attend Office of Greek Life risk manager meetings.
12. Awards Chair
    (a) Leads a committee to fill out Greek Life and IHQ awards that are due in their term.
    (b) Serves as a member of CCC.
    (c) Works with the President to fill out Chapter Standards by the fall deadline.
    (d) Maintains a system for collecting documentation which includes, but is not limited to the following:
        i. All events and activities of the chapter.
        ii. Accomplishments of chapter officers (i.e. service hours and recruitment numbers)
13. Greek Games Chair
    (a) Organizes the chapter's participation in Greek Week.
    (b) Attends Greek Week Chair meetings sponsored by the Greek Week Steering Committee.
    (c) Appoints brothers to captain Greek Week events.
14. Interfraternity Congress Representative
    (a) Represents the chapter at IFC meetings.
    (b) Must have been a brother for at least one full semester.
15. Librarian
    (a) Sits on the Scholarship Committee.
    (b) Manages house library and book collections.
16. OX Roast Chair
    (a) Must serve on Alumni Relations Committee.
    (b) Plans the annual OX Roast event with the alumni to be held in the fall semester.
    (c) Will be appointed after OX Roast to serve until the next OX Roast.
17. Temporary Chairs
    (a) May be appointed by the President to be in charge of specific events. Examples include DAMAGE Chair, Formal Chair, and Master of the Universe.

F Executive Council

1. Membership
   (a) EC will be composed of the following:
      i. President
      ii. Vice President
      iii. Vice President of Health and Safety
      iv. Secretary
      v. Treasurer
      vi. Marshal
      vii. Recruitment Chair
      viii. Scholarship Chair
      ix. Executive Council Member at Large
2. Purpose, Duties, and Powers
   (a) Interprets the bylaws as outlined in Article I, Section D.
   (b) Serves as an executive body.
   (c) Guides the chapter in emergencies.
   (d) Reviews excuses for chapter meetings and other chapter events.
      i. In evaluating excuses, the EC shall adhere to the standards set in the Acceptable Excuses Plan. Said Acceptable Excuses Plan shall consist of the following:
         A. specifically what is an acceptable excuse, with examples
         B. specifically what is not an acceptable excuse, with examples
         C. the number of unexcused absences /personal days /"no questions asked" missed chapters allowed per semester before taken to standards board
      ii. The Acceptable Excuses Plan shall be distributed to the chapter one week before retreat at the beginning of every semester and approved at retreat, with any necessary amendments, as a piece of temporary legislation valid for one semester.
   (e) Reviews Requests for Deferment (Article VI, Section D).
   (f) Passes Executive Edicts as defined in Article II, Section D, Item 4
   (g) Suspends portions of the Bylaws subject to chapter approval as defined in Article I, Section C.
   (h) Reviews appeals to Academic Probation as defined in Article X, Section A.
   (i) Meet with respective CAB member once a month.
   (j) Appoints appointed positions.
3. Voting
   (a) Voting Members
      i. Vice President
      ii. Vice President of Health and Safety
      iii. Secretary
      iv. Treasurer
      v. Marshal
      vi. Recruitment Chair
      vii. Scholarship Chair
   (b) Quorum will consist of at least five members, at least four of whom must be voting members.
   (c) All votes are decided by an absolute majority of EC.

i. The President will have a vote in case of a tie.

4. Procedure
   (a) EC is chaired by the Vice President.
   (b) EC will meet weekly while school is in session.
   (c) EC will admit any brother or candidate unless the meeting is declared closed by the Vice President or an absolute majority of EC.
      i. EC may admit any guest to closed EC by an absolute majority vote.
      ii. EC meetings will be closed to non-EC members in situations that require discussing private or emergency matters such as Requests for Deferment.
   (d) The Vice President will serve as the representative of EC to the chapter.

G Committees

1. Every brother must be a member of at least one Standing and one Operational Committee.
   (a) If a brother misses three meetings of any one of their assigned committees without obtaining and approved excuse from that committee's chair, that committee's chair may bring that brother up for standards of behavior unbecoming of a brother.
   (b) committee meetings scheduled less than five days in advance cannot be counted towards the absences above.
2. The chapter will have the following committees:
   (a) Standing Committees
      i. The Standing Committees of the chapter will include:
         A. Recruitment Committee
         B. Public Relations Committee
         C. Health and Safety Committee
         D. Social Committee
      ii. All Standing Committees will do the following:
         A. Meet at least once every two weeks as directed by their chair.
         B. Assist the chair in the discharge of their duties.
         C. Create a set of goals for the committee at the first meeting of the committee.
         D. Work toward the goals of the committee.
   (b) Operational Committees
      i. The Operational Committees of the chapter will include:
         A. Alumni Relations Committee
         B. Member Development Committee
         C. Scholarship Committee
         D. Philanthropy and Service Committee
      ii. All Operational Committees will do the following:
         A. Meet at least once every four weeks as directed by their chair.
         B. Assist the chair in the discharge of their duties.
         C. Create a set of goals for the committee at the first meeting of the committee.
         D. Work toward the goals of the committee.
   (c) Budget Committee
      i. Purpose and Duties

A. To create a budget for the chapter for the next year pursuant to Article VI, Section B.
B. To examine any financial issues of the chapter.

ii. Membership
A. The Treasurer will serve as chair of the Budget Committee.
B. The body of the committee will be selected by the treasurer.

iii. Procedure
A. The committee will be created and convened during the budgeting process outlined in Article VI, Section B.
B. The committee may meet at other times to examine the finances of the chapter at the direction of EC.

(d) Mandatory Bylaw Revision Committee

i. The Mandatory Bylaw Revision Committee will function in accordance with Article IX, Section C.

(e) Committee Chair Committee (CCC)

i. Purpose
A. To facilitate communication between committee chairs.
B. To keep the Vice President informed of committee business.
C. To help the Vice President ensure that committees are performing all necessary duties.

ii. Membership
A. The Vice President will serve as the Chair of the CCC.
B. The Chairs of all Standing and Operational Committees will be members.
C. Other brothers may be added to the committee at the Vice President's discretion.

iii. Procedure
A. The committee will meet weekly while school is in session.
B. The Vice President will evaluate progress toward committee goals.

3. Ad Hoc Committees

(a) The Vice President has the power to make other committees at their discretion.

Article VI

Finances

A General Rules

1. Two signatures are required on all accounts of the chapter, pursuant to the International Bylaws (IBL), Article V, Section 9, paragraph b.
2. Neither the chapter nor alumni corporation can have or use any form of ATM, debit, credit or money card that is attached to any account of the chapter or alumni corporation.
3. An officer cannot issue a check to himself.
4. All transactions made by the chapter will not utilize a petty-cash system and must be made by check. All transactions made to the chapter will not utilize a petty-cash system for payments exceeding $ 100.
5. All reimbursements require a receipt.
6. All statements and record books are reconciled monthly.
7. Only the President or Treasurer may sign contracts on behalf of the chapter.

B Budget

1. The Treasurer will present a preliminary budget to the Budget Committee (Article V, Section G, Item 2c) no later than six weeks before the beginning of the Fall Semester.
2. The Treasurer will submit the final budget proposal, as approved by the Budget Committee, for the following academic year to the chapter no later than three weeks before the beginning of of the Fall Semester. The proposal is approved by supermajority vote of the chapter.
   (a) Following approval by the chapter, the budget proposal will be presented to the Alumni Corporation and the Alumni Financial Advisor.
3. Budget Committee
   (a) The Budget Committee (Article V, Section G, Item 2c) will be created and convened no later than six weeks before the beginning of the Fall semester.
   (b) The committee will create a budget to be submitted to the chapter based on the preliminary budget created by the Treasurer.
4. Any officer with a budget may distribute portions of their budget as they see fit.
5. Safety Marigin and Emergency Fund
   (a) Any money leftover for the year from the Safety Margin must be moved to an emergency fund account until that account has 50% of the next year's projected expenses saved. This account is only to be accessed with the vote of EC and the CAB.

C Financial Obligations of Members

1. Each brother, New Member, and Alumnus is responsible for any fraternity property damaged, broken, or lost due to any negligence or carelessness on the part of that person or their guest.
   (a) Any decision regarding this rule will be decided by Executive Council (EC).
2. Brothers will pay all dues and other financial obligations to the chapter as defined in the budget.
3. Brothers may send a notice directly to the president that they will not be paying dues for the coming semester. One month after this notice has been sent, the brother is automatically suspended.

D Deferments

1. If a brother deems that they will be unable to pay their bill by the due date, they may submit a request for deferment
2. A request for deferment must be submitted to EC by the due date of the bill that is being deferred.
3. A deferment must be approved by a vote of EC or a supermajority vote of the chapter.
4. A brother that is not following the payment plan in their deferment will have their account balance considered past due.
5. Interest on late payments may be charged at the discretion of EC.

E Payment Schedule and Penalties

1. The due date for any bill will be at least two weeks after the date on which the bill was issued and will be before the next bill is to be issued.
2. The chapter may, by unanimous ballot, exempt a brother from payment of any debts owed to the chapter.
   (a) The unpaid debt will be divided equally among the other members of the chapter.
3. If the account balance of any brother, New Member, or Alumnus is negative and past due, he will be placed on financial probation unless a deferment has been approved.
   (a) A brother placed on financial probation will be fined no more than $20.
   (b) A brother on financial probation loses voting rights.
   (c) If a brother is on financial probation for more than one week, a suspension trial will be scheduled for him.
   (d) The Alumni Corporation and the chapter financial advisor will be notified of any brother placed on financial probation.
4. If a brother has a debt, including deferments, of over $3,000:
   (a) EC will vote on whether or not to hold a suspension trial for him after every bill.
   (b) The Treasurer will announce the brother's status to the chapter after every bill.
   (c) Any receipt forms that the brother submits must be credited against that debt unless EC approves an exception.

F Finance Privacy Section

1. Executive Council and CAB will have access to all accounts, including bank accounts, budgeting and financial software, the current ledger, and Greek Bill (or whatever online service is currently being used).

G Reimbursements

1. A member who would like to obtain a reimbursement needs the treasurer's approval and the respective chair's approval. If the member is the chair themselves, they must get approval from any member of EC other than themselves.

2. To buy something(s) for an event that totals more than $250 and obtain a reimbursement, you need the treasurer's approval and the respective chair's approval. If you are one of those people, you must get the approval from the president instead of yourself.

Article VII

Housing Policies

A Alcohol, Tobacco, and Illegal Substances

1. No alcohol is to be consumed in the house or on the chapter property.
2. No alcohol is to be stored in the house or on the chapter property except for the purposes of cooking.
   (a) Alcohol stored for cooking may only be stored for a period of twenty-four hours.
3. Tobacco may be possessed and chewed within the house or on the chapter property.
4. Illegal substances may not be possessed, stored, or used in the house or on the chapter property.
5. If a brother or their guest violates Article VII, Section A, Item 1, Article VII, Section A, Item 2, Article VII, Section A, Item 3, or Article VII, Section A, Item 4, they will be brought up for standards by the President, with sanctions not less than:
   (a) First Offense — $50 fine
   (b) Second Offense — $75 fine, placed on probation, and becomes staggard
   (c) Third Offense — $100 fine and is recommended for suspension to the chapter
6. No candles will be burned inside the house or on the chapter property.
7. Article VII, Section A, Item 1, Article VII, Section A, Item 2, and Article VII, Section A, Item 3 will become null and void upon the downfall of Western Civilization.

B Housing Eligibility

1. All active brothers are to live in the chapter house pursuant to Article V, Section 10 of the International Bylaws (IBL).
   (a) The following brothers are exempt from this policy:
      i. 1st year students
      ii. Commuter Students
      iii. Those who are married
      iv. Those who receive housing as compensation for employment (e.g. Resident Assistants)
      v. Those who are on Co-op, Study Abroad, or a similar program
      vi. Those who were ineligible or exempt at the beginning of the school year
      vii. Those with a prohibitive medical condition as approved by Case Western Reserve University
2. The following brothers must live in the chapter house:

(a) President
(b) Vice President
(c) Vice President of Health and Safety
(d) Treasurer
(e) Marshal
(f) Recruitment Chair
(g) Scholarship Chair
(h) House Manager
(i) Food Steward

3. If the Chaplain is not living in the house, one of the ritual keys must be left in the house.

4. Brothers in violation of Article VII, Section B, Item 1 or Article VII, Section B, Item 2 are to be brought up for standards by the Vice President with the possibility of suspension.

5. In order for a brother to move in to the house, they must not be on financial probation and must not have a debt to the chapter exceeding $3000, including deferments.

   (a) Brothers living in the house during the fall of any year are exempt from this stipulation for the spring semester of that year only.

6. Brothers living in the house must have a signed housing contract by the due date (Article V, Section D, Item 5l).

7. Alumni will be permitted one year after graduation or status change to live in the house without chapter approval. After that semester, the brother in question must receive a supermajority vote in order to remain in the house.

   (a) Alumni must be taking classes at Case Western Reserve University (CWRU) to live in the house (i.e. as a graduate student).

8. Only a spouse to a brother living in the house and taking classes at CWRU may live in the house during the school year. A spouse meeting these qualifications must receive a supermajority vote of the chapter to live in the house.

9. Active brothers will have priority over all other possible residents for the purposes of living in the house and room assignments, at the discretion of the Vice President.

C Room Assignments

1. If the number of brothers eligible to live in the house exceeds the capacity of the house:

   (a) Brothers who have lived in the house during the school year for at least one semester will be allowed the option of moving out in order of pledge class from oldest to most recent, at the discretion of the Vice President.

      i. The house may not be dropped below capacity.
      ii. If this method would bring the house below capacity:
         A. Of the brothers with the highest roster number among those who wish to move out, select the number of brothers that would bring the house to capacity by a mutually acceptable method.

   (b) If, after application of the method described in Article VII, Section C, Item 1a, the house is still above capacity, brothers who have lived the most semesters in the house (excluding summer) will be forced to move out.

i. If two or more brothers have lived in the house the same amount of time, the one with the lowest unmodified roster number will be forced to move out first.

ii. Brothers listed in Article VII, Section B, Item 2 cannot be forced to live out of the house.

2. Any brother applying for a room must have less than $50 debt, including deferments, at the time room assignments are made, lest they become staggard.

3. Room 205 is reserved for the President unless they waive this right.

4. Room assignments will be made by the Vice President following these guidelines:

   (a) If two or more groups of brothers wish to occupy the same room, the room will be assigned to:

      i. The group with the most brothers, not to exceed the capacity of the room; else

      ii. The group of brothers with the greatest number of brothers with squatter's rights for that particular room; else

      iii. The group of brothers with the lowest aggregate roster number; else

      iv. The group of brothers decided by a mutually acceptable method.

5. The Vice President will have penultimate authority, beneath the chapter, to assign rooms to the best of their ability in keeping with the guidelines established in Article VII, Section C, Item 4.

Article VIII

Awards

A Specified Awards

1. The chapter may give out any awards subject to the procedures defined in Article VIII, **??**.

Article IX

Mandatory Chapter Bylaw Revisions

A Purpose

1. To update the contents of the chapter bylaws which might otherwise become inapplicable as well as introducing bylaw amendments, if applicable.
2. To ensure that the chapter repeatedly renews its knowledge of the contents of the chapter bylaws.

B Frequency

1. Mandatory Revisions will be held within 2 years of the previous mandatory revision period.
2. The Vice President may at any time form a committee to review the chapter bylaws using the process of the Mandatory Revisions.

C Committee

1. During Mandatory Revisions, a committee chaired by the Vice President will review the Chapter Bylaws.
2. Members of the committee will be selected by the Vice President.
3. The committee will meet weekly unless a majority of members cannot attend or revisions are complete.

D Process

1. The committee will compose a list of amendments.
   (a) An item is put on the list if it is deemed mutually acceptable by members of the committee.
2. The committee will bring this list before the chapter as a block of bylaw amendments.

Article X

Scholarship

A Scholarship Standards

1. Once per semester, brothers and Candidates will fill out grade release forms.
   (a) Grade release forms must be filled out prior to the due date for midterm grades.
2. Members will be evaluated according to the following criteria:
   (a) Brothers on Academic Probation are required to make a grade improvement plan with the Scholarship Chair. Any brother with a Grade Point Average (GPA) less than 3.0 is placed on Academic Probation.
      i. The grade improvement plan will be approved by the Scholarship Chair, the President, and the brother. Failure to follow the grade improvement plan as judged by the Scholarship Chair will result in the brother being brought up for standards.
      ii. A brother on Academic Probation is allowed to attend at maximum 3 social events per semester. Their responsibilities for Rush are reduced to one third of events. This brother will not be allowed to hold an elected position. Academic Probation
   (b) A brother shall be automatically brought up to Standards Board for an Academic Review as defined in Article XII, Section L if:
      i. They have two consecutive semester GPA's less than 3.0.
      ii. They have a semester GPA less than 2.75.
         - If the brother had a previous semester GPA also below a 2.75, the brother may be put on probation.
      iii. They have a semester GPA below a 2.5 and does not have a previous semester GPA above a 3.0.
         - A brother in this situation will be recommended for probation.
      iv. Standards board is encouraged to only recommend a brother for suspenion in the most neccesary circumstances and may only do so if:
         - They have two consecutive semester GPA's less than 2.75.
         - They have a semester GPA less than a 2.5.
   (c) If a brother is participating in a program where they do not receive a GPA (e.g. a Co-op) and would be placed on Academic Probation:
      i. They are not placed on Academic Probation that semester.
      ii. The next semester in which they are not participating in such a program, they will be placed on Academic Probation.

B New Member Scholarship

1. During the New Member program, the Scholarship Chair will meet with the New Members during a regular New Member meeting to explain the chapter Scholarship program and answer any questions they have.
2. New Members will be held to the academic standards in Article X, Section A.
3. Candidates will be required to sign grade releases no later than 14 days of grade releases being made available.
4. A candidate is eligible for initiation if and only if they achieved higher than a 3.0 GPA in the previous semester, or if they have a cumulative GPA of greater than 2.5. Upon receiving a Candidate's GPA, and finding it does not meet the requirements, the Marshal shall announce this at the next regularly scheduled chapter meeting.
   (a) First semester freshmen are exempt from this rule.
5. Any Candidate that is ineligible to be initiated will have the option to remain a Candidate.
   (a) Should a Candidate remain ineligible in any subsequent semester, they may remain a Candidate only with an absolute majority vote by the active chapter

C Privacy

1. The President, Scholarship Chair, Alumni Advisor, and Faculty Advisor are permitted to know the GPA of each brother.
2. All brothers can know the names of brothers on Academic Probation.
3. All brothers can know the names of brothers who cannot hold office due to grades.

Article XI

Expectations of Brothers

A Code of Conduct

1. No brother will reveal the secrets of the fraternity to anyone who is not an initiated member of Theta Chi Fraternity.
2. All brothers will obey all federal, state, and local laws.
3. All brothers will obey all University regulations and Interfraternity Congress (IFC) Constitution and Bylaws.
4. All brothers will obey the International Bylaws (IBL).
5. All brothers will obey the local bylaws and the provisions of the lease on the fraternity house.

B Standards of Brotherhood

1. Financial
   (a) Brothers will abide by the financial obligations outlined in Article VI, Section C.
2. Rush
   (a) Brothers will attend an amount of Rush events as specified by the Rush Plan.
3. Social
   (a) Brothers will attend a majority of social events each semester unless they are on Academic Probation.
   (b) Brothers not on Academic Probation will be involved in at least one non-greek campus student organization.
4. Scholarship
   (a) Brothers will abide by the scholarship standards described in Article X, Section A.
5. Service
   (a) Brothers will complete the service hours assigned to them by the Philanthropy and Service Chair.
6. Chapter Events
   (a) When an event is declared an official chapter event by Executive Council (EC), all members must attend it unless excused by EC. A missed official chapter event that is not excused will count as an unexcused mandatory event

i. Missing a mandatory event without an accepted excuse will count as unexcused.
ii. A brother who has three unexcused mandatory events in a row must be brought up for standards by the Secretary with the possibility of suspension
iii. A brother who has three unexcused mandatory events throughout the semester will be staggard.
iv. A brother who has four unexcused mandatory events throughout the semester will be placed on probation until the end of the semester.
v. A brother who has seven or more unexcused mandatory events throughout the semester will be brought up for standards by the Secretary with the possibility of suspension.

(b) Brothers will attend chapter meetings as outlined in Article III, Section C.

7. Committees

(a) Brothers will be active members of committees and abide by all relevant bylaws pertaining to the roles and responsibilities of committee members, as detailed in Article V, Section G.

(b) Brothers will attend assigned committee meetings as outlined in Article V, Section G.

C Considerations for Potential New Members

1. When issuing bids to potential new members, the chapter will take into account their behavior, especially towards non-brothers, and ensure that it is consistent with our expectations of brothers.

Article XII

Standards Board

A Purpose

1. To judge infractions of the bylaws and standards of the chapter.

B Membership

1. The membership of the Standards Board is five Justices; the First Guard, who presides as Arbiter; the Second Guard, who serves as Scribe; and the Vice President, who serves as Parliamentarian.
2. Justices are elected according to the procedure in Article IV, Section B, Item 4.
3. The Arbiter and Scribe are ineligible to serve as Justices on the board.
4. Members of Executive Council (EC) are ineligible to serve as Justices on the board.
5. Justices must at all times be eligible to hold office (Article X, Section B, Item 2(a)ii).
6. Justices serve on the board until resignation, ineligibility, removal from office, or graduation.

C Voting

1. Unless otherwise specified, votes of the board are by simple majority.
2. All Justices are voting members of the board.
3. The Scribe and Parliamentarian are non-voting members of the board and the Arbiter will only vote in the case of a tie.
4. Quorum of the board consists of $\frac{2}{3}$ of its members, including at least $\frac{2}{3}$ of the active Justices.

D Duties of Membership

1. Arbiter
   (a) Schedules and presides at all meetings, hearings, and academic reviews.
   (b) Reviews all claims with the Scribe to ascertain their validity.
   (c) Announces final rulings to the chapter.
   (d) Keeps confidential all matters relating to judicial proceedings with the exception of announcing rulings as in Article XII, Section D, Item 1c.

   (e) Treats all brothers fairly, impartially, and consistently.
   (f) Will ensure that all Justices receive training on judicial procedure and relevant rules and policies each semester.
   (g) Advises the board on matters of precedent.
   (h) Ensures the completion of all sanctions.

2. Scribe
   (a) Keeps records of all meetings and hearings of the board.
   (b) Reviews all claims with the Arbiter to ascertain their validity.
   (c) Keeps confidential all matters relating to judicial proceedings.
   (d) Treats all brothers fairly, impartially, and consistently.

3. Justice
   (a) Hears and votes on all matters brought before the board.
   (b) Attends all meetings of the board.
   (c) Keeps confidential all matters relating to judicial proceedings.
   (d) Treats all brothers fairly, impartially, and consistently.
   (e) Attends judicial training once per semester, at the discretion of the Parliamentarian.

4. Parliamentarian
   (a) Advises the board on matters of procedure.
   (b) Answers any questions concerning the International Bylaws (IBL), Interfraternity Congress (IFC) bylaws, Greek Life policies, university regulations, Robert's Rules, local bylaws, or legislation.
   (c) Serves as liason between EC and the board.
   (d) Will ensure that all Standards Board Members receive training on judicial procedure and relevant rules and policies each semester.
   (e) Advises the board on matters of precedent.
   (f) Keeps confidential all matters relating to judicial proceedings.
   (g) Treats all brothers fairly, impartially, and consistently.
   (h) Reviews all claims with the Arbiter and Scribe to ascertain their validity.

5. If the Arbiter, Scribe, or Parliamentarian has been recused, or is the accused, the order of succession of Standards Board:
   (a) Arbiter
   (b) Scribe
   (c) Parliamentarian
   (d) Chapter President

6. If two or more non-EC members of the order of succession are recused, are accused, or otherwise unable to serve, the trial will become a Chapter Trial.

E Justice Removal

1. If, at any time, a Justice becomes ineligible to hold office or is elected to an EC position, that Justice is removed from office.
2. Any Justice may be removed for the following reasons:
   (a) Failure to perform their duties, including unexcused abscence from more than one board meeting per semester.
   (b) Failure to maintain confidentiality of all proceedings of the board.
   (c) Conduct unbecoming of a Justice or which negatively affects the credibility of the board.
3. The removal of Justice trial will follow the procedure for a hearing with the following amendments:
   (a) The accused Justice will not be counted as a member of the board.
   (b) The only possible sanction is removal from office.
   (c) The decision will require a supermajority vote of the board.

F Charges

1. When the accusation is received by the Arbiter, Scribe, and Parliamentarian, they will collectively decide whether the issue will be brought to standards, or the chapter.
   (a) If the accuser and/or accused disagree with the decision of which trial the charges are brought to, they may appeal the decision.
   (b) The appeal will be brought exclusively to the standards board justices to vote on whether the appeal is valid.

G Accusation Procedure

1. All accusations must be submitted in writing to the Arbiter wihtin one month of the most recent violation.
   (a) Each accusation must be as detailed as possible including at least the clause of the local bylaws that was violated.
   (b) Each accusation must be submitted within one month of the violation.
2. Upon receiving the Accusation, the Arbiter, Scribe, and Parliamentarian will determine the validity of the claim.
3. The Arbiter will inform the accuser of the validity of the accusation.
4. If the accusation is found to be without merit, proceedings will end and no hearing will be held.
5. If the accusation is found to have merit, the Arbiter will provide written notification to the accused.
   (a) The notification must be given within forty-eight hours of receipt of the accusation.
   (b) The notification must include the charges with enough detail to allow the accused to prepare a defense.
6. Upon receiving the notification, the accused has twenty-four hours to submit a plea in writing to the Arbiter.
   (a) The possible pleas are responsible plea, not responsible plea, and no contest plea.
   (b) If a plea is not received, a no contest plea will be entered.

7. After a plea is entered, the Arbiter will schedule a time and place for the hearing.
   (a) The hearing shall occur between 1 and 3 weeks after a plea is entered.
   (b) The Arbiter will notify the accused, accuser, and the board of the time, place, and nature of the hearing. The accusation an dplea will also be submitted to the Standards Board Justices.
8. The Parliamentarian will inform EC of the accusation, the accused, and the nature of the complaint at the next EC meeting.
9. Recusal
   (a) Members of the board will recuse themselves from the hearing if they feel a conflict of interest exists or they are the accused.
   (b) Members of the board may be recused by simple majority vote of the remaining board. The accused, accuser, or a member of the board may call for such a vote.
   (c) Justices and members of the Standards Board may recuse themselves or others up to the beginning of the trial.

H Hearing Preparation

1. Evidence and a statement by the anonymous accuser will be distributed by the Arbiter between twenty-four and forty-eight hours before the trial date and time.
2. Witnesses may volunteer to speak on behalf of or against the charges.
   (a) The witnesses may volunteer by giving a written message to the Arbiter stating their intent to participate and stance at least three hours before the trial.
3. Witnesses will be advised by the Arbiter that they are not to discuss the hearing or the accusation outside of the hearing.
4. Witnesses must remain outside the room until called by the Arbiter and leave when dismissed.
5. The dress at the hearing will be informal.
6. The Arbiter will call the hearing to order and ask all but the directly related participants to leave the room. The directly related participants are the Arbiter, Scribe, Parliamentarian, Justices, and accused.

I Hearing Method

1. The arbiter reads aloud the charges and ensures that the accused understands the charges.
2. The accused may give an opening statement with a time limit as voted on by the board.
3. The accused may then be asked questions by the board with a time limit as voted on by the board.
4. All witnesses will be brought into the room by the Arbiter.
5. Witnesses that wish to speak for the charges will be chosen in an order decided by the Arbiter to give a statement. The accused and the justices will ask questions of the witness(es) with a time limit as voted on by the board.
6. Witnesses that wish to speak against the charges will be chosen in an order decided by the Arbiter to give a statement. The accused and the justices will ask questions of the witness(es) with a time limit as voted on by the board.
7. All witnesses will be excused by the Arbiter.

8. The accused may give a closing statement with a time limit as voted on by the board.
9. The Arbiter will excuse the accused from the hearing.
10. The board will then determine appropriate sanctions, if any.
    (a) Past judicial history of the accused and sanctions given for similar accusations in the past may be considered.
    (b) The board will vote on the sanction.
11. After the sanctions have been determined the Arbiter will readmit the accused back to the hearing and will announce the sanctions given, if any.
12. The Arbiter will then inform the accused of the appeal process.
13. The Arbiter will then adjourn the hearing.

J Sanctions

1. The board may issue sanctions within its limited scope. The following are suggested examples of possible sanctions:
    (a) Community Service
    (b) Cost of repairs
    (c) Fines
    (d) House Service
    (e) Letter of Apology
    (f) Removal from an Appointed Position
2. The Arbiter will ensure the completion of sanctions.
    (a) If the sanctions are not completed, the Arbiter will bring the brother up for standards.

K Appeals

1. The accused may appeal a decision of the board.
    (a) If the appeal is for reasons outlined in Article XII, Section J, Item 2, Points (a) or (c), the appeal must be submitted within five days of receiving written notification of the results of the hearing.
2. A decision can only be appealed for the following reasons:
    (a) The procedure for the hearing was not followed.
    (b) New information is discovered that wasn't available at the time of hearing.
    (c) The sanction is inappropriate.
3. The appeal will be presented in writing to the Parliamentarian and will state the grounds for the appeal.
4. EC will determine the validity of the appeal.
5. If the appeal is valid, the confidentiality of the hearing is waived and at the next chapter meeting the appellant will explain the reason for the appeal. The Arbiter will then explain the board's decision. Following the statements, the accused leaves the room and a discussion takes place. A supermajority vote is needed to repeal the decision.
6. If the decision is repealed, the chapter may give new sanctions by simple majority vote.
7. After the chapter has voted, the accused brother will return to the meeting and will be informed of the decision by the President.

L Academic Review

1. An Academic Review shall be held whenever the Scholarship Chair requests a suspension trial in accordance with the duties of their office.
2. An Academic Review must be scheduled prior to the associated suspension trial.
3. An Academic Review is not a Standards Board Trial.
4. An Academic Review shall be carried out by the Arbiter, Parliamentarian, Scribe, Scholarship Chair, and Standards Board Justices.
5. A quorum of Standards Board is required to hold an Academic Review.
6. Attendance of an Academic Review is mandatory for all members of the board, and the Scholarship Chair.
7. A justice may be recused from an Academic Review under the following circumstances:
   (a) Members of the board for whom the Scholarship Chair is requesting a suspension trial will recuse themselves.
   (b) Members of the board will recuse themselves if they feel a conflict of interests exists.
   (c) Members of the board may be recused by simple majority vote of the remaining board. The brother under review, the Scholarship Chair, or a member of the board may call for such a vote.
8. Process of an Academic Review
   (a) Scheduling:
      i. The Arbiter will schedule Academic Reviews.
      ii. All Academic Reviews for a semester shall be held at the beginning of the semester at the discretion of the Arbiter.
      iii. If members of the board are under academic review, their reviews will be scheduled before reviews of non-members. If the Arbiter is under academic review, their review will be scheduled first.
      iv. The Arbiter will inform the board, Scholarship Chair, and brothers under review of the day's schedule within three days of the Scholarship Chair requesting academic suspensions.
   (b) Preparation:
      i. The brother under review is not required to attend.
      ii. Both the brother under review and the Scholarship Chair may provide witnesses and any form of relevant documents, including written statements. If either the brother under review or the Scholarship Chair cannot attend the review, any such documents must be sent to the scribe along with an order of any witnesses to be called.
      iii. The Arbiter will call the meeting to order and ask all but unrecused members of the board, the Scholarship Chair, and the brother under review to leave the room.
   (c) Method:
      i. The Scholarship Chair and brother under review may give an opening statement, in that order.
      ii. The Scholarship Chair may then be asked questions by the brother under review and the board.
      iii. The brother under review may then be asked questions by the Scholarship Chair and the board.

iv. The Scholarship Chair and then the brother under review may then present any witnesses or documents. If they are not present, the provided witnesses and documents will be presented in the provided order. After each witnesses gives a statement the Scholarship Chair, brother under review, and board may ask questions of the witness. Documents will remain with the scribe until the conclusion of the review.

v. The Scholarship Chair and brother under review may give closing statements, in that order.

vi. The Arbiter will excuse the Scholarship Chair and brother under review.

vii. The board will then deliberate. The board may consult any documents and recall any witnesses, the Scholarship Chair, or the brother under review if further questions arise.

viii. The board will vote to recommend the brother under review for suspension, or to not recommend the brother under review for suspension.

ix. The Arbiter will recall the Scholarship Chair and the brother under review and inform them of the boards decision.

x. If the board voted not to recommend the brother under review for suspension, the Arbiter will instruct the Scholarship Chair to withdraw their request for a suspension trial for the brother under review immediately.

9. If an academic review cannot be held for a brother before the requested suspension trial, the Arbiter will inform the chapter during that trial that no review was held and that no recommendation has been given.

10. In the event that the board does not recommend the brother under review for suspension the proceedings of the review will be confidential.

11. In the event that the board recommends the brother under review for suspension the proceedings of the review will not be confidential. Any statements by the Scholarship Chair, brother under review, or witnesses, the content of any presented documents, and the nature of the boards deliberation may be requested and discussed during the associated suspension trial.

Article XIII

Chapter Trial

A Purpose

1. To judge infractions of the bylaws on a chapter-wide level.

B Membership

1. The President of the chapter presides over the trial. If the President is unable to serve or not present, the Arbiter will preside over the trial.
2. If neither the President nor the Arbiter are able to serve, follow the Order of Succession of Standards Board Article XII, Section D, Item 5)

C Voting

1. Unless otherwise specified, votes during a Chapter Trial are by simple majority.
2. Every member of the chapter who is present for the trial except for the Scribe and Parliamentarian is a voting member.
3. The Scribe and Parliamentarian are non-voting members, and the member who is presiding over the trial will only vote in the case of a tie.
4. Quorum of the trial consists of $\frac{2}{3}$ of the chapter.

D Charges

1. When the accusation is received by the Arbiter, Scribe, and Parliamentarian, they will collectively decide whether the issue will be brought to standards, or the chapter.
   (a) If the accuser and/or accused disagree with the decision of which trial the charges are brought to, they may appeal the decision.
   (b) The appeal will be brought exclusively to the standards board justices to vote on whether the appeal is valid.

E Accusation Procedure

1. All accusations must be submitted in writing to the Arbiter wihtin one month of the most recent violation.

   (a) Each accusation must be as detailed as possible including at least the clause of the local bylaws that was violated.
   (b) Each accusation must be submitted within one month of the violation.

2. Upon receiving the Accusation, the Arbiter, Scribe, and Parliamentarian will determine the validity of the claim.
3. The Arbiter will inform the accuser of the validity of the accusation.
4. If the accusation is found to be without merit, proceedings will end and no hearing will be held.
5. If the accusation is found to have merit, the Arbiter will provide written notification to the accused.
   (a) The notification must be given within forty-eight hours of receipt of the accusation.
   (b) The notification must include the charges with enough detail to allow the accused to prepare a defense.
6. Upon receiving the notification, the accused has twenty-four hours to submit a plea in writing to the Arbiter.
   (a) The possible pleas are responsible plea, not responsible plea, and no contest plea.
   (b) If a plea is not received, a no contest plea will be entered.
7. After a plea is entered, the Arbiter will schedule a time and place for the hearing.
   (a) The hearing shall occur between 1 and 3 weeks after a plea is entered.
   (b) The Arbiter will notify the accused, accuser, and the board of the time, place, and nature of the hearing. The accusation an dplea will also be submitted to the Standards Board Justices.
8. The Parliamentarian will inform Executive Council (EC) of the accusation, the accused, and the nature of the complaint at the next EC meeting.
9. Recusal
   (a) Members of the board will recuse themselves from the hearing if they feel a conflict of interest exists or they are the accused.
   (b) Members of the board may be recused by simple majority vote of the remaining board. The accused, accuser, or a member of the board may call for such a vote.
   (c) Justices and members of the Standards Board may recuse themselves or others up to the beginning of the trial.

F Hearing Preparation

1. Evidence will be distributed by the Arbiter between twenty-four and forty-eight hours before the trial date and time.
2. Attire will be at the discretion of the Arbiter.
3. Witnesses may volunteer to speak on behalf of or against the charges.
   (a) The witnesses may volunteer by giving a written message to the Arbiter stating their intent to participate and stance at least three hours before the trial.
   (b) Witnesses will be advised by the Arbiter that they are not to discuss the hearing or the accusation outside of the hearing.
   (c) The Arbiter will call the hearing to order.

G Hearing Procedure

1. The Arbiter reads aloud the charges and plea and ensures that the accused understands the charges and their plea.
2. The accuser may give an opening statement with a time limit as voted on by the chapter.
3. The accused may give an opening statement with a time limit as voted on by the chapter.
4. The accuser may then be asked questions by the chapter with a time limit as voted on by the chapter.
5. The accused may then be asked questions by the chapter with a time limit as voted on by the chapter.
6. All witnesses will be brought into the room by the Arbiter.
7. Witnesses that wish to speak for the charges will be chosen in an order decided by the Arbiter to give a statement. The accused and the justices will ask questions of the witness(es) with a time limit as voted on by the chapter.
8. Witnesses that wish to speak against the charges will be chosen in an order decided by the Arbiter to give a statement. The accused and the justices will ask questions of the witness(es) with a time limit as voted on by the chapter.
9. All witnesses will be excused by the Arbiter.
10. The accuser may give a closing statement with a time limit as voted on by the chapter.
11. The accused may give a closing statement with a time limit as voted on by the chapter.
12. The Arbiter will excuse the accuser and the accused from the hearing.
13. The chapter will then determine whether the accused is responsible or not responsible.
14. The chapter will then determine appropriate sanctions, if any.
    (a) Past judicial history of the accused and sanctions given for similar accusations in the past may be considered.
    (b) There will be a discussion to determine each specific sanction. After discussion comes to a close, the sanctions decided upon must be passed by a $\frac{2}{3}$ of present members vote. If the vote is not passed, the chapter will return to discussion.
15. After the verdict and sanctions have been determined the Arbiter will readmit the accused and accuser back to the hearing and will announce the verdict and sanctions given, if any.
16. The Arbiter will then inform the accused of the appeal process.
17. The Arbiter will then adjourn the hearing.

H Sanctions

1. The chapter may issue sanctions within its scope. The following are suggested examples of possible sanctions:
    (a) Counseling
    (b) Loss of housing status
    (c) Loss of voting privileges
    (d) Recommendation of Removal from an Elected Position
    (e) Recommendation of Suspension
    (f) Probation

Article XIV

Suspension and Expulsion Trial

A Preface

1. This section's purpose is to summarize the Suspension and Expulsion Procedures in the International Bylaws (IBL). For more detailed procedures, refer to IBL Article VI , Section 13.

B Purpose

1. To determine whether suspension or expulsion is warranted due to violations of their obligation to the Fraternity. These violations include:
   (a) Conduct that indicates he is unworthy to represent, bear the name of, or wear the badge of the Fraternity.
   (b) A violation of any oaths taken during Ritual.
   (c) A violation of the limitations on memberships as detailed in IBL Article VI, Section 12.
   (d) Participation in an initiation conducted in volation of IBL Article VI, Section 4, Subsection e.
   (e) A violation of any financial obligation to the active chapter.
2. Suspension should be imposed in cases where an action that provides a path back to good standing is appropriate.
3. Explusion should be imposed when misconduct warrants permanently extinguishing the member's association with the Fraternity (e.g due to severity, repetition, or other appropriate grounds).

C Accusation

1. Any collegiate or alumnus member of a chapter may submit an accusation against any other collegiate or alumnus member of that chapter by making a statement of the charges, orally or in writing , privately to the president of the chapter. Each accusation must be as detailed as possible so that the accused may prepare a defense if they so choose.
2. If the accusing member request action upon the accustation, the president will follow this procedure:
   (a) Establish a date, time, and place for the trial, which shall be scheduled as soon as reasonably practicable.
   (b) Notify the accused in writing of the date, time, and place of the trial, at least seven days prior to the time the trial is scheduled. The notice must contain the specific charges. If personal service is not possible, the president shall notify the accused in writing, by mail, or similar method resulting in delivery of a receipt to the chapter, at least fourteen days prior to the meeting.

(c) Notify all collegiate members of the active chapter of the date, time, and placeof the trial by the fastest means possible.

D Procedure

1. After the meeting is called to order and a quorum is determined to be present, the president shall read the accusations, withholding the name of the accuser. The meeting may proceed whether or not the accused member attends.

2. Witnesses (members or non-members) may be called by any member, including the accused, to testify as to their knowledge of the accusations. Members, including the accused, may ask questions of any witness.

3. The accused has the right to speak on their own behalf. Members may ask questions of the accused.

4. After all witnesses have been heard, the accused shall withdraw from the meeting. Members then ballot upon the motion to suspend and/or expel the accused. The affirmative vote of a simple majority of all collegiate members eligible to vote shall be necessary to sustain a motion to suspend. A $\frac{3}{4}$ vote of all collegate members eligible to vote shall be necessary to expel.

5. If two or more members have been accused of the same or related conduct and the hearings of the accusations for such members have been scheduled for a single meeting, all accused members shall withdraw from the meeting before members vote on any of the otions. No such accused member shall be eligible to vote with respect to a motion relating to any other of the accused.

6. The result of the votes on all resolutions shall be promptly communicated to the acused member, who shall govern themself accordingly.

7. No record of the proceeding with respect to an accused member shall be retained unless the motion to suspend or expel is sustained.

   (a) If the motion to expel is sustained, the chapter shall promptly send International Headquarters (IHQ) a copy of the motice of meeting served; a complete statement of the original accusations and any written response made by the accused; a numerical record of the number of al members eligible to vote, the number of members eligible and prsent for the vote, and the number of such members voting for the motion; a summary of all evidence submitted by all witnesses; a copy of the minutes of the meeting recording the action of the chapter.

   (b) If a motion to suspend is sustained, the chapter shall promptly report the suspension to IHQ.

E Lifting Suspension

1. If the chapter deems that lifting a suspension given by this section is appropriate, the president of the active chapter which imposed the suspension shall receive a petition signed by more than $\frac{1}{3}$ of all collegiate members of the chapter seeking to lift the suspension.

2. The president shall call and conduct a meeting in accordance with with IBL Article VI, Section 13, paragraphs 1 through 6 and the first sentence of paragraph 7.

3. The members shall ballot upon a motion to lift the suspension. This motion needs the affirmative vote of at least $\frac{1}{2}$ of all collegiate members of the chapter eligible to vote in order to sustain the motion.

Appendix A

EC Interpretations

1. Academic warning is treated the same way as Academic Probation when a brother has not had classes for a semester.
2. Standards Board does NOT need to automatically recommend a brother for suspension if said brother is brought up for standards with the possibility of suspension.
3. When adding interpretations, make sure to refence the particular bylaw being interpreted and the year the interpretation was made

Appendix B

Standards Rulings

1. Date: September 25, 2010
   Charges: A brother was under a 2.2 GPA for two consecutive semesters.
   Plea: Responsible.
   Sanctions: Recommendation for suspension, voting privileges suspended until off of academic probation.

2. September 25, 2010
   Charges: A brother was under a 2.2 GPA for two consecutive semesters. Brother was currently on co-op.
   Plea: No Contest.
   Sanctions: Recommendation for suspension, voting privileges revoked upon return from co-op.

3. October 22, 2010
   Charges: A brother was living outside of the house without permission from the chapter.
   Plea: No Contest.
   Sanctions: Formal apology in chapter, staggard for time equal to time out of the house upon return to the house. Recommendation for suspension.

4. February 7, 2012
   Charges: A brother was brought up for conduct unbecoming.
   Plea: Not Responsible.
   Sanctions: Letter of formal apology to those offended, immediate removal from office of Standards Board Justice.

5. January 11, 2015
   Charges: A brother was living outside of the house without permission from the chapter.
   Plea: No Contest.
   Sanctions: The brother must pay the difference between cost to live in the house and his rent, loss of voting rights, and required to still do house and kitchen details.

6. March 21, 2015
   Charges: Four brothers were planning to live outside of the house without permission from the chapter
   Plea: No Contest
   Sanctions: The brothers must remain on the house detail plan, maintain contact with the Scholarship Chair, and their voting rights were revoked.

7. April 26, 2015
   Charges: A brother was planning to live outside of the house without permission from the chapter
   Plea: No Contest
   Sanctions: The brother must complete kitchen details or actively attend study tables at a rate set by the Scholarship Chair.

8. February 28, 2016
   Charges: A brother was planning on living outside the house without the permission of the chapter
   Plea: Not Responsible
   Sanctions: No repercussions

Appendix C

Permanent Legislation

1. The gargoyles on the front of the Theta Chi house at 11136 Magnolia Drive, Cleveland OH, 44106, shall be named Alphonso and Raul, with the northernmost being Raul.